HEADNOTE

> *"Acting as a representative of a party in a particular proceeding in accordance with Rule 8.1 and .2 RoP requires that the lawyer has the authority from the party to act as counsel on behalf of the latter. The authority to act as counsel is subject of Civil law. According to Rule 285.1 RoP a representative is deemed to be acting under such authority as long as his representative powers are not challenged. Neither the CMS nor any other software establishes the status of representative. The CMS does not exclude any person as a representative because this person is not named in the CMS for a particular proceeding."*

COURT
Local Division in Munich

PROCEEDINGS
Procedural order

PATENT
EP 2 863 637

VIDEO DECODING DEVICE, VIDEO DECODING METHOD AND VIDEO DECODING PROGRAM

KEYWORDS

Representative

extension of time periods

Rule 8 Party and party's representative

SUMMARY
The Local Division in Munich issued a procedural order. The patent at issue relates to a video decoding device, video decoding method and video decoding program. According to the headnotes of the decision, a lawyer acting as representative must hold authority from the party. This authority derives from civil law principles rather than patent law. Furthermore, the Rules of Procedure establish a presumption of authority unless challenged. In particular, the case management system does not determine representative status. The system cannot exclude anyone based on CMS records. This means the system cannot prevent representation based on CMS appearance alone.